



CHAPTER xxii.

An Act to authorise the Hebburn Urban District Council A.D. 1911.
to construct a new street in their district and to make
further provision in regard to the health local government
and improvement of the district and for other purposes.
[2nd June 1911.]

WHEREAS the district of Hebburn in the county of Durham
(in this Act called "the district") is an urban district
and is under the government of the Hebburn Urban District
Council (in this Act called "the Council"):

And whereas the construction of the new street mentioned
in this Act would be of public and local advantage and it is
expedient to empower the Council to construct such new street
and in connection therewith to confirm the agreement set forth
in the First Schedule to this Act:

And whereas it is expedient to make further provision in
regard to the streets and buildings of the district and that the
powers of the Council in relation to the health local government
and improvement of the district be enlarged as by this Act
provided:

And whereas it is expedient that the other provisions
contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected
without the authority of Parliament:

And whereas estimates have been prepared by the Council
for the purposes hereinafter mentioned and such estimates are as
follows:—

For and in connection with the acquisition of
lands for and for and in connection with the
[Price 2s. 9d.]

A.D. 1911.

construction of the new street authorised by Part II. of this Act and for the purpose of executing and carrying into effect the scheduled agreement - - - - -

And whereas an absolute majority of the whole number of the Council at a meeting held on the fourteenth day of November nineteen hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Jarrow Guardian a local newspaper circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas the said resolution was published twice in the said newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the thirteenth day of February nineteen hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas the work included in such estimates is a permanent work and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

And whereas plans and sections showing the lines and levels of the work authorised by this Act and the lands upon which a charge will be imposed and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands upon which such work will be executed and of the lands upon which a charge will be imposed were duly deposited with the clerk of the peace for the county of Durham and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

A.D. 1911.

PART I.

PRELIMINARY.

1. This Act may be cited as the Hebburn Urban District Council Act 1911. Short title.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Argyle Street Improvement.

Part III.—Streets Buildings Sewers and Drains.

Part IV.—Infectious Disease and Sanitary Provisions.

Part V.—Financial.

Part VI.—Miscellaneous.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpreta-
tion.

“The Council” means the Hebburn Urban District Council;

“The district” means the urban district of Hebburn;

“The clerk” “the medical officer” “the surveyor” and “the inspector of nuisances” mean respectively the clerk the medical officer of health the surveyor and the inspector of nuisances of the district and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district;

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any provisional order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council;

“The scheduled agreement” means the agreement dated the twenty-eighth day of November nineteen hundred and ten and made between Ralph Henry Carr-Ellison of the first part Peter William Purves and Herbert George Carr Carr-Ellison of the second part the Wallsend and Hebburn Coal Company Limited of the third part the Bede Metal and Chemical Company Limited of the fourth part and the Council of the fifth part as set forth in the First Schedule to this Act.

PART II.

A.D. 1911.

ARGYLE STREET IMPROVEMENT.

4.—(1) Subject to the provisions of this Act and to the terms of the scheduled agreement the Council may make and maintain in the district and in the lines and according to the levels shown on the deposited plans and sections and upon the lands delineated on those plans and described in the deposited book of reference the following new street with all necessary or proper approaches embankments retaining walls culverts channels bridges drains works and conveniences connected therewith (namely):—

Power to construct new street and confirmation of scheduled agreement.

A new street together with a straightening widening and improvement of the existing street in the district known as "School Street" commencing by a junction with Argyle Street at a point fifteen yards or thereabouts east of Sharpendon Street and terminating by a junction with School Street at or near the intersection of that street and Ash Street.

(2) The Council may for the purposes of the said new street and of the scheduled agreement enter upon take and use all or any of the lands delineated upon the deposited plans and described in the deposited book of reference.

(3) The scheduled agreement is hereby confirmed and made binding on the parties thereto and the same shall be carried into effect accordingly.

5. Subject to the provisions of the scheduled agreement the Council may in the construction of the work authorised by this Part of this Act deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding three feet either upwards or downwards.

Limits of deviation for new street.

6. So soon as the new street authorised by this Act has been completed and opened for public use the Council may stop up and discontinue as part of the public highway so much of the existing street called "School Street" as may be outside the limits of the new street and thereupon all public rights of way over or along such portions of the existing street shall be extinguished.

Stopping up of existing highways.

A.D. 1911.

Temporary
stoppage of
streets.

7.—(1) The Council during the execution of and for and in connection with the new street authorised by this Part of this Act may break up and also temporarily stop up divert and interfere with any street and may for any reasonable time prevent all persons other than those *bonâ fide* going to or returning from any house or premises in such street from passing along and using the same.

(2) The Council shall provide reasonable access for persons *bonâ fide* going to or returning from any such house or premises.

Improve-
ment charge.

8.—(1) In this section—

The expression “the owner” has the same meaning as in the Public Health Act 1875;

The expression “building land” means any land upon which any house or building has been erected or is in course of erection and any land used or occupied therewith.

(2)—(a) The Council may recover the expenses incurred by them in levelling paving flagging kerbing channelling sewerage draining and making good the said new street from the owners of the several parcels of land mentioned in the Second Schedule to this Act according to their respective frontages and in such proportions as may be settled by the surveyor:

(b) Provided that if the owner of any of the said lands shall within one month after a copy of such apportionment shall have been served upon him give notice in writing to the Council that he disputes either the amount of the said expenses or the apportionment the same shall be settled by a single arbitrator to be appointed by the Local Government Board and the provisions of the Arbitration Act 1889 shall apply thereto.

(3) A copy of the apportionment made by the surveyor or the arbitrator as the case may be signed and certified by the clerk to be a true copy shall be evidence of such apportionment and of the due making thereof and shall be final and conclusive for all purposes.

(4) The sum so apportioned as aforesaid in respect of any of the said parcels of land shall unless otherwise agreed between the Council and the owner be paid to the Council by ten equal annual instalments together with interest thereon at the rate

of four per centum per annum from the date on which the first instalment becomes due until payment and such instalments and interest may be recovered summarily or if the Council think fit in any county or superior court from any person who is the owner of the land when the instalment becomes due and until recovery the said sum and interest shall be a charge upon the said land and upon all estates and interests from time to time therein. Provided that the owner may upon giving one month's notice in writing to the Council of his intention so to do at any time pay to the Council the whole of the sum so apportioned and for the time being unpaid in respect of any of the said pieces of land with interest thereon as aforesaid. A.D. 1911.

(5) The first of such instalments shall become due and payable if the land in respect of which it is payable or any part thereof is then building land one month after the copy of the apportionment shall have been served upon the owner as aforesaid and if no part of such land is then building land the first instalment shall become due and payable when the land or any part thereof becomes building land and each subsequent instalment shall become due twelve months after the previous instalment became due.

(6) All sums received by the Council under the provisions of this section shall be applied towards the payment of interest on and providing the requisite appropriations instalments or sinking fund payments for the repayment of the loan raised by the Council under the provisions of this Act for the construction of the new street and subject thereto shall be paid into the district fund. Provided that any capital sum received by them under the provisions of this section shall be applied in or towards the extinguishment of the said loan and subject thereto shall be applied in such manner as the Council with the approval of the Local Government Board may determine.

9. If any difference in respect of which no method of determination is provided by this Act arises under this Part of this Act or under the scheduled agreement such difference shall be determined by an arbitrator to be appointed in default of agreement by the Local Government Board upon the application in writing of either of the parties to such difference and the provisions of the Arbitration Act 1889 shall apply to any such arbitration. Arbitration.

A.D. 1911.

PART III.

STREETS BUILDINGS SEWERS AND DRAINS.

Council may
define future
line of exist-
ing streets.

10.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on the plan to be signed by and deposited with the surveyor and such plan shall at all reasonable times thereafter be open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(2) The Council may and if required so to do by the owner shall purchase the land lying between any such line as aforesaid and the existing building line of the street or road and the same when purchased shall vest in the Council as part of the street or road and the amount of the purchase money shall in the case of difference be settled by arbitration under the Arbitration Act 1889.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner or other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1911.

11.—(1) When a road or lane within the district becomes in consequence of building operations a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street has been or is in course of being built on the Council may instead of requiring the owner of the land built on or in course of being built on to widen such road or lane to a width prescribed by the byelaws in force in the district require such owner to widen such road or lane so as to give a width of not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land. Further provisions as to new streets.

(2) Provided that if and when the land on the opposite side of such road or lane shall be in course of being built on the owner of such land shall complete the widening of such road or lane so as to comply in all respects with the byelaws of the Council.

12. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street. Continuation of existing streets to be deemed new streets.

13.—(1) No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof. No building allowed until street defined.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

14. The Council may make byelaws with respect to the materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the passing of this Act. Byelaws as to building materials.

A.D. 1911.

Provisions as
to house
without
water
supply.

15. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

Erection of
buildings to
greater
height than
adjoining
buildings.

16.—(1) In case any building is after the passing of this Act erected or raised to a greater height than the adjoining building or buildings and any flues or chimneys of such adjoining building or buildings are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Elevation of
buildings
erected on
front land to
be subject to
approval of
Council.

17.—(1) All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Council becomes front land shall be erected according to such elevation as the Council approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building or wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with the plan approved by the Council and in case the Council for the space of one month after any plan of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof.

(2) Any person who shall offend against the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) The Council shall make compensation to the owner of any building or land for any loss or damage he may suffer by

reason of the setting back or bringing forward of such building wall or fence. A.D. 1911.

18.—(1) Every new dwelling-house shall be provided with at least one living room with a floor area of not less than one hundred and fifteen square feet and one bedroom with a floor area of not less than one hundred and ten square feet. Area of habitable rooms.

(2) No bedroom or other habitable room in any such dwelling-house shall have less floor area than seventy square feet.

(3) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

19. If in any street not repairable by the inhabitants at large the Council for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council. Council may require enlarged sewer.

20. The powers given by section 19 (Extension of 38 & 39 Vict. c. 55. s. 41) of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner. Amendment of section 19 of Public Health Acts Amendment Act 1890.

21.—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of a sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners. Council may order houses to be drained by a combined drain.

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council except with the consent of the owner or owners of the said house.

Council may
make com-
munications
between pri-
vate drains
and their
sewers on
payment &c.

22. If the owner or occupier of any premises within the district desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose.

Reconstruc-
tion of drains.

23.—(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the byelaws of the Council.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Improper
construction
or repair of
watercloset
or drain.

24.—(1) If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act or neglect or default be liable to a penalty not exceeding twenty pounds.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any fine and the said other person may be summarily convicted of the offence.

25. If any person cause any drain watercloset earthcloset privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

A.D. 1911.

Wilful
damage to
drains water-
closets &c.

26. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under this Part of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Penalty on
occupier re-
fusing execu-
tion of Act.

27. Nothing contained in this Part of this Act shall apply to any building (not being a dwelling-house) or to any street upon or within any land or property belonging to any railway company and used by such company as a part of or in connection with their railway.

Exemption
for railway
property.

PART IV.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

28.—(1) Any person being a manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity who within the district—

For regula-
ting manu-
facture and
sale of ice-
cream &c.

(a) Causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911

manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain ; or

(b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer ;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

Inspection of
premises of
dealer in ice-
cream.

29.—(1) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

30. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the district of such disease the medical officer shall give notice thereof to the person responsible for the conduct of the burial of the body of such person and it shall not be lawful to transport any such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

A.D. 1911.
 Removal of
 body of
 person dying
 from infec-
 tious disease.

31. The Council may by notice in writing require the owner or occupier of any dwelling-house shop or warehouse to provide galvanised iron or enamelled iron dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Council and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings Provided that this section shall not authorise the Council to require the provision of a dustbin thereunder in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition.

Regulation
 dustbins.

32. The Council may make byelaws regulating the admission to and discharge of patients from any hospital for infectious diseases temporarily or otherwise provided by them and the conduct of patients therein and for preventing persons from entering such hospital or the grounds thereof except with the consent of and subject to such conditions as may be imposed by the Council.

Byelaws
 regulating
 hospitals.

33.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the Council offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

Public notice
 to be given
 of provisions
 of this Part
 of Act.

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 Geo. 5.]
Act, 1911.

A.D. 1911.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART V.

FINANCIAL.

Power to
borrow.

34.—(1) The Council may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column of the said table (namely):—

1.	2.	3.
Purpose.	Amount.	Period for repayment.
(a) For and in connection with the acquisition of lands for and for and in connection with the construction of the new street authorised by Part II. of this Act and for the purpose of executing and carrying into effect the scheduled agreement.	£3,300	Fifty years from the date or dates of borrowing.
(b) For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Council may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act:

Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Local Government Board.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the district fund and general district rate:

The provisions of this subsection shall not limit the powers conferred upon the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

35. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

A.D. 1911.
 Section 234
 of Public
 Health Act
 1875 not to
 apply.

36. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Mode of
 raising
 money.

37. Subject to the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

Provisions of
 Public
 Health Act
 1875 as to
 mortgages
 to apply.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

38. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months from the date of borrowing.

Mode of pay-
 ment off of
 money bor-
 rowed.

39.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either—

Sinking
 fund.

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a "non-accumulating sinking fund"; or

A.D. 1911.

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investment of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct. A.D. 1911.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

40. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by the Council

Protection of
lender from
necessity of
inquiry.

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Council not
to regard
trusts.

41. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any change or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appoint-
ment of re-
ceiver.

42.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to re-
borrow.

43.—(1) The Council shall have power—

(a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period

prescribed for the repayment of that loan which remains unex- A.D. 1911.
pired and the provisions which are for the time being applicable
to the original loan shall apply to the moneys borrowed under
this section.

(3) The Council shall not have power to borrow for the
purpose of making any payment to a sinking fund or of paying
any instalment or making any annual payment which has or
may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order
to replace any moneys previously borrowed which have been
repaid—

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the
purpose of the repayment other than moneys borrowed
for that purpose.

44.--(1) The clerk shall within forty-two days after the
thirty-first day of March in each year if during the twelve
months next preceding the said thirty-first day of March any
sum is required to be paid as an instalment or annual payment
or to be appropriated or to be paid to the sinking fund in respect
of any of the moneys raised by the Council in pursuance of any
statutory borrowing power and not raised by the issue of stock
and at any other time when the Board may require such a return
to be made transmit to the Board a return in such form as may
be prescribed by the Board and if required by the Board verified
by a statutory declaration of the clerk showing for the year
next preceding the making of such return or for such other
period as the Board may prescribe the amounts which have been
paid as instalments or annual payments and the amounts which
have been appropriated and the amounts which have been paid
to or invested or applied for the purpose of the sinking fund
and the description of the securities upon which any investment
has been made and the purposes to which any portion of the
sinking fund or investment or of the sums accumulated by way
of compound interest has been applied during the same period
and the total amount (if any) remaining invested at the end of
the year together with such further information (if any) as the
Board shall require and in the event of his failing to make such

Return to
Local
Government
Board as to
sinking
fund.

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. — return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

Application
of money
borrowed.

45. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Power to in-
vest all sink-
ing funds in
statutory
securities.

46. When under the provisions of any Act of Parliament or of any order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Council are empowered or required to form a sinking fund for the payment off of money borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Power to use
one form of
mortgage for
all purposes.

47.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be

sealed with the common seal of the Council and may be made in the form contained in the Third Schedule to this Act or to the like effect. A.D. 1911.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the

A.D. 1911. form contained in the Third Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Scheme for
fixing
equated
period.

48.—(1) The Council may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mort-

gage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder. A.D. 1911.

(3) The Council may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto and any money so borrowed shall be repaid within such period as the Local Government Board may sanction.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

49. Any expenses of the execution by the Council of this Act with respect to which no other provision is made shall be defrayed by the Council out of the district fund and general district rate. Expenses of execution of Act.

50.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. Inquiries by Local Government Board.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

PART VI.

MISCELLANEOUS.

51.—(1) Any person appointed by the Council in writing may examine all hackney carriages and other public vehicles plying for hire within the district and shall see that the laws Powers of inspectors of hackney carriages.

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. and byelaws relating to such hackney carriages and public vehicles are duly observed.

(2) If the proprietor driver conductor or other person shall obstruct or hinder such person so appointed as aforesaid in the execution of his duty such proprietor driver conductor or person shall be liable to a penalty not exceeding forty shillings.

Occasional
licences may
be granted.

52. An occasional licence for a public vehicle may be granted by the Council to be in force for such day or days or other period less than a year as may be specified in the licence.

Street cries.

53. Every person who shall on Sunday in any street or public place within the district call or shout or ring any bell or use any other noisy instrument for the purpose of selling or advertising any newspaper journal or serial shall for every such offence be liable to a penalty not exceeding forty shillings.

Power to
grant gratui-
ties in certain
cases.

54.—(1) The Council may if they think fit grant a gratuity of any sum (not exceeding one year's pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

(3) No such gratuity shall be granted in respect of disablement or injury for which any officer or servant of the Council is entitled to compensation under the provisions of the Workmen's Compensation Act 1906.

Evidence of
appoint-
ments
authority
&c.

55. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent or to prove any resolution of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any

meeting or the production of any minute book or other record or document. A.D. 1911.

56. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent. As to breach of conditions of consent of Council.

57. Whenever the Council or the surveyor under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Council shall not as between themselves and such owner occupier or other person in absence of negligence on the part of the Council or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Council in the absence of negligence shall be deemed to be part of the expenses payable by such owner or occupier or other person and shall be recoverable accordingly. In executing works for owner Council only liable for negligence.

58.—(1) Where any notice or demand under this Act or under any local Act provisional order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be a sufficient authentication. Authentication and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act provisional order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

Confirmation
of byelaws.

59. The provisions of the following sections of the Public Health Act 1875 (namely):—

Section 182 (Authentication and alteration of byelaws);

Section 183 (Power to impose penalties on breach of byelaws);

Section 184 (Confirmation of byelaws);

Section 185 (Byelaws to be printed &c.); and

Section 186 (Evidence of byelaws);

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act.

Consent of
Council to be
in writing.

60. All consents given by the Council under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the clerk.

As to appeal.

61. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer of the Council under the provisions of this Act or by any conviction or order made by a court of summary jurisdiction under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Council may in like manner appeal.

Apportion-
ment of ex-
penses in case
of joint
owners.

62. Where under the provisions of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Recovery of
penalties &c.

63. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs damages and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that the costs damages

and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. A.D. 1911.

64. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. *Recovery of demands.*

65. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts. *Compensation &c. how to be determined.*

66. The Council when they are required by any provision of this Act or any general or local Act to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent. *Compensation may be in land.*

67. Save as otherwise by this Act expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or any byelaws made thereunder may be laid by an officer of the Council authorised in that behalf or by the clerk. *Informations by whom to be laid.*

68. All penalties recovered on the prosecution of the Council or any officer of the Council on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer to the Council and be carried by him to the credit of the district fund or to such other fund as the Council shall direct. *Penalties to be paid to treasurer.*

69. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. *Judges &c. not disqualified.*

70. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein. *Application of section 265 of Public Health Act 1875.*

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

Saving for
indictment
&c.

71. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

For protec-
tion of South
Shields Gas
Company.

72. For the protection of the South Shields Gas Company (in this section called "the company") the following provisions shall unless otherwise agreed between the Council and the company apply and have effect (that is to say):—

(1) The Council shall not disconnect or interfere with the existing gas main of the company in the portion of School Street which they are authorised by Part II. of this Act to stop up nor shall they impede the passage of gas into or through the same or interfere unreasonably with the access of the company by their officers and workmen thereto until a proper main in substitution therefor and sufficient for continuing the supply of gas as the same was supplied at the date of the passing of this Act through such existing main shall at the expense of the Council and to the reasonable satisfaction of the engineer of the company have been first laid down under the new street authorised by this Act and duly connected with the said existing main. Provided that—

(A) If the company by notice in writing to the Council so require they may and shall with all reasonable expedition themselves lay down such main and connect the same with the said existing main and the Council shall pay to the company the reasonable expenses actually incurred by them in so doing;

(B) If having given such notice in writing the company fail to lay down and connect such main as aforesaid with all reasonable expedition the Council may notwithstanding such notice themselves lay down and connect the same in accordance with the requirements of this section.

(2) As soon as such main in substitution for the said existing main has been laid down and connected as aforesaid the Council may interfere with and remove the said existing main and any portion thereof so disconnected shall be the property of the Council: A.D. 1911.

(3) In any case where the line or level of any street is altered under the powers of this Act and it becomes reasonably necessary by reason of such alteration to alter the position of or otherwise adjust any gas main or pipe or apparatus of the company the Council shall pay the reasonable cost of any such alteration or adjustment:

(4) If any difference arises between the company and the Council in relation to any of the provisions of this section such difference shall be determined by arbitration the arbitrator being appointed in default of agreement by the President of the Institution of Civil Engineers on the application of either party after notice in writing thereof to the other and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

73. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

74. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

75. All the costs charges and expenses preliminary to and of and incidental to the preparing and applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys borrowed under this Act for that purpose. Costs of Act.

A.D. 1911. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

AN AGREEMENT made this twelfth day of December one thousand nine hundred and ten between RALPH HENRY CARR-ELLISON of Hedgeley in the county of Northumberland and Dunston in the county of Durham a lieutenant-colonel in His Majesty's Army (hereinafter called "the landowner") of the first part PETER WILLIAM PURVES of 155 West George Street in the city of Glasgow insurance agent and HERBERT GEORGE CARR CARR-ELLISON of 15 Eldon Square in the city and county of Newcastle-upon-Tyne solicitor (hereinafter called "the trustees") of the second part the WALLSEND AND HEBBURN COAL COMPANY LIMITED (hereinafter called "the coal company") of the third part the BEDE METAL AND CHEMICAL COMPANY LIMITED (hereinafter called "the metal company") of the fourth part and the URBAN DISTRICT COUNCIL OF HEBBURN (hereinafter called "the Council") of the fifth part.

WHEREAS under an indenture of settlement dated the twenty-eighth day of December one thousand nine hundred and four and made between John Ralph Carr-Ellison (now deceased) and the landowner of the first part the said John Ralph Carr-Ellison of the second part the landowner of the third part and the trustees of the fourth part the landowner is now beneficially entitled during his life to the possession of the hereditaments hereinafter described with divers remainders over and the trustees are trustees for the purposes of the Settled Land Acts 1882-1890 with a power of sale of the hereditaments thereby settled which include the hereditaments hereinafter described:

And whereas by virtue of an indenture of lease dated the thirtieth day of December one thousand eight hundred and seventy-nine made between Ralph Carr-Ellison now deceased and the said John Ralph Carr-Ellison of the first part the said Ralph Carr-Ellison of the second part and the Tyne Coal Company Limited of the third part the coal company (as the successors and assigns in title and estate of the said

Tyne Coal Company Limited) are entitled to use and maintain a branch railway between the colliery wagon-way therein mentioned and the Pelaw and South Shields branch of the North Eastern Railway of which branch railway part thereof is shown on the plan hereto attached for a term of sixty years from the first day of May one thousand eight hundred and seventy-six: A.D. 1911.

And whereas by virtue of an indenture of lease dated the thirtieth day of December one thousand eight hundred and seventy-nine and made between Ralph Carr-Ellison and the said John Ralph Carr-Ellison of the first part the said Ralph Carr-Ellison of the second part the Tyne Coal Company Limited of the third part and the metal company of the fourth part the metal company are entitled to use and maintain a branch railway between their works at Hebburn and the Pelaw and South Shields branch of the North Eastern Railway of which branch railway part thereof is shown on the plan hereto attached for a term of sixty years from the first day of July one thousand eight hundred and seventy-six:

And whereas the Council are desirous of continuing a certain public street called Argyle Street of a width of forty-five feet up to and so as to form a connection with another public street called School Street both of which streets are in the urban district of Hebburn and for such purpose to make a new street between the said two streets of the same width of forty-five feet over and across the said railways of the coal company and the metal company hereinbefore mentioned and are also desirous of widening School Street aforesaid to the extent shown on the said plan hereto annexed:

And whereas the said street called School Street is a public highway and the same is shown upon the said plan hereto annexed and thereon coloured blue and part of the site thereof will form part of the said proposed new street and other parts of the site thereof will be vested in the landowner:

And whereas the coal company are entitled to or possessed of the site of the said proposed new street for the following terms and subject to the payment of the rents and performance and observance of the covenants and conditions contained in the following leases respectively (that is to say) (A) as to part of such site for a term of ninety-nine years from the first day of May one thousand eight hundred and seventy-three granted by an indenture of lease dated the twenty-first day of October one thousand eight hundred and seventy-three and made between Henry Lord Rokeby and Edward Goulburn (now deceased) of the first part Mary Ellison (now deceased) and the said Ralph Carr-Ellison of the second part and the Tyne Coal Company Limited of the third part (B) as to another part of such site for a term of ninety-nine years from the first day of May one thousand eight hundred and ninety

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. — granted by an indenture of lease dated the third day of July one thousand eight hundred and ninety and made between the said John Ralph Carr-Ellison of the one part and the Tyne Coal Company Limited of the other part and (c) as to the remaining part of such site for a term of forty-two years from the first day of January one thousand eight hundred and ninety-two granted by an indenture dated the first day of November one thousand eight hundred and ninety-three and made between the said John Ralph Carr-Ellison of the one part and the coal company of the other part:

And whereas the Council have applied to the several parties hereto for their consent to the construction of such new street and each of them has agreed thereto so far as he or they lawfully can and to the extent of their respective estates and interests and subject to the terms and conditions hereinafter mentioned:

Now in consideration of the premises it is hereby agreed by and between the parties hereto as follows (that is to say):—

1. The Council shall in accordance with the plan hereto annexed lay out and construct a new street forty-five feet in width (inclusive of footpaths) from the line C D (shown on the said plan) at the end of Argyle Street in the said urban district of Hebburn and in continuation thereof over and across the said railways hereinbefore mentioned up to the line A B (also shown on the said plan) so as to form a connection with the part of School Street in the same district lying to the north-east of the said line A B.

2. The Council shall level pave flag kerb channel sewer drain and make good the said new street as soon as may be and on the completion thereof the same shall be a highway repairable by the inhabitants at large within the meaning of section 149 of the Public Health Act 1875.

3. As from the completion of the said new street all public rights on or over the three several portions of the said street called School Street which lie to the south-west of the line A B as shown on the said plan and are thereon coloured blue and cross-hatched with green and are not intended to form part of the said new street shall be entirely extinguished and the same shall be vested in the parties hereto of the first second and third parts according to their respective interests in the lands adjoining thereto respectively and not now forming parts of School Street aforesaid absolutely freed from all public rights of whatsoever nature.

4.—(1) The Council shall erect and maintain at all times gates across each of the said railways on each side of the said new street and shall at all times keep at the said gates a competent male person who shall close and keep closed the said gates across the said new

A.D. 1911.

street whenever and so long as any traffic of the coal company or the metal company is about to pass or is passing over the part of the railway of the coal company or the metal company as the case may be upon the said new street and shall during such period prevent any person animal or thing from passing or attempting to pass over such part of the said railways or from being on such part of the said railways or any part of the said street between the said gates and the said railways.

(2) Such gates shall be kept constantly closed against each of the said railways except during the time engines carriages or trucks passing along either of them shall have occasion to cross the said new street and shall be of such dimensions and so constructed as when closed across each railway to fence in that railway and prevent persons cattle or horses on the street from entering upon any part of that railway not being the site of any part of the said new street.

(3) The Council shall at all times indemnify and keep indemnified each of the other parties to this agreement against all liability whatsoever in respect of any accident which may occur to any person or property by reason of the passage of any traffic or of any engines or wagons passing along the said railways or either of them and across the said new street or by reason of any person or property having obtained access to the railways or either of them from the said new street and having suffered injury thereon.

5. The Council shall erect and at all times thereafter maintain on both sides of the said new street (except where existing front and back streets now join the said new street) a suitable fence not less than four feet in height so as to fence off the said new street from the adjoining land not for the time being used for building purposes but the landlord the coal company or any other company or persons for the time being in the occupation of any part of such adjoining land so fenced off as aforesaid may at any time hereafter make such openings in any parts of the said fence as they may deem requisite for the purpose of access from or to any part of such adjoining land to or from any part of the said new street and after any such opening shall be made the obligation on the Council to maintain the part of the said fence on the site of any such opening shall wholly cease and determine.

6. In place of the four houses coloured red and marked C D E and F on the said plan and as regards C and F partly cross-hatched green thereon which are situate mainly upon part of the site of the said new street and are to be removed by the Council the Council shall before any such removal at their own expense erect four houses of the same class and value or thereabouts with front and back streets and drains and sewers therefor on such other part of the coal company's premises as the coal company with the approval of the landowner may select in accordance with plans sections and specifications to be submitted

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. to and approved by the coal company and the landowner respectively and all the covenants and conditions contained in the said recited lease of the third day of July one thousand eight hundred and ninety shall apply to the said new houses when effected as aforesaid in the same manner and to the same extent as they now apply to the existing houses now included in that lease.

7. The Council shall repay to the coal company all reasonable costs and expenses incurred by them of or incidental to the consideration and approval of the plans elevations and specifications for re-erecting the said four new houses as aforesaid and shall restore and make good any damage caused to the adjoining houses or premises of the coal company in pulling down the said four existing houses and in particular will make good any gable walls which may be exposed thereby so that the same may be good and proper gable walls.

8.—(1) The Council shall at their own cost carry out and effect in a good and workmanlike manner to the satisfaction of the coal company the alterations to the reservoir as indicated in the said plan and without restricting such generality shall fill up the north-western portion of the reservoir indicated by black cross-hatching on the said plan and shall make the extension of the reservoir indicated in the said plan by being cross-hatched purple and marked "extensions to reservoir" making such extension of a like depth to the other portion of the reservoir and shall make the sides on the north-western side of the extended reservoir and on the north-western south-western and south-eastern sides of the extended portion and the bottom of the said extended portion of a similar nature and slope or level respectively to the other sides of the reservoir and the bottom of the remaining portion thereof.

(2) In carrying out such alterations the Council shall cause as little inconvenience to the coal company as reasonably may be.

9. The Council shall at their own cost forthwith pull down and remove the existing pump-house shown on the said plan and erect a similar pump-house in a good and workmanlike manner to the satisfaction of the coal company in the position indicated by cross-hatching on the said plan and marked "proposed pump-house" and shall at the like cost and to the like satisfaction remove from the existing pump-house and reinstate in the proposed pump-house the pumping machinery and apparatus with all necessary outlets from the reservoir and pipes or channels to enable the water to be pumped into the pipes which now convey the water away from the existing pump-house to the coal company's works and premises.

10. All materials of the said pump-house and houses to be removed as aforesaid shall if and so far as not used in the erection of the said proposed pump-house and other houses belong to the Council.

11. During the construction of the said new street the Council shall use their best endeavours to prevent any interference with the traffic on the said railways or either of them and after the completion thereof the user of the said new street by the public shall be in all respects subject to the user of the said railways by the coal company and the metal company respectively during their present and any future leases or tenancies by them respectively of the said respective railways and the landowner or any other person or company entitled to the user thereof respectively with locomotive engines or otherwise and to the right of those companies or persons to use maintain renew and repair the said railways respectively as freely as they might have done had the said new street never become a public highway and accordingly notwithstanding any vesting of the said new street in the Council these companies or persons shall be at liberty from time to time and at all times to enter upon and use the said new street for the purposes of maintaining renewing relaying or repairing and using with locomotive engines or otherwise the said railways respectively as freely as they were entitled to do before this agreement was entered into or before the said new street was dedicated to the public or became vested in the Council. A.D. 1911.

12. Provisions shall be inserted in the Bill for the confirmation of this agreement providing for the expenses incurred by the Council in levelling paving flagging kerbing channelling sewerage draining and making good the said new street in accordance with clause 2 of this agreement being repaid to the Council by the owners or occupiers for the time being of the land fronting adjoining or abutting on the said new street according to the frontage of their respective premises and in such proportion as shall be settled by the surveyor for the time being of the Council or in case of dispute by arbitration such repayment to be made by annual instalments spread over a term of years or by means of improvement rates. Provided that no such instalment or improvement rate shall be leviable upon or recoverable from such owner or occupier in respect of any land until the same shall have been used for building purposes or from the coal company in respect of any land used for the purposes of the reservoir hereinbefore mentioned nor from the landowner the coal company nor the metal company in respect of the said railways or either of them. Provided also that for the purposes of this clause the expression "the owner" has the same meaning as in the Public Health Act 1875.

And it is hereby agreed between all the parties hereto as follows:—

13. The Council shall make and at all times thereafter maintain a suitable fence not less than seven and a half feet high along the whole of the southern and western side of the coal company's said railway from Waggonway Road up to its junction with the North Eastern Railway except where the company's railway will cross the said new street.

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

14. The Council shall make and at all times thereafter maintain a suitable fence not less than seven and a half feet high along the whole of the northern and eastern side of the metal company's said railway from the works of the metal company to the junction of the metal company's railway with the North Eastern Railway except where the metal company's railway will cross the said new street.

And it is hereby agreed between the landowner the trustees and the coal company as follows:—

15. All the covenants and conditions on the part of the lessees contained in the said indentures of lease of the thirtieth December one thousand eight hundred and seventy-nine the twenty-first October one thousand eight hundred and seventy-three the third July one thousand eight hundred and ninety and the first November one thousand eight hundred and ninety-three so far as they are inconsistent with any part of the provisions of this agreement shall cease to apply to the site of the said new street or any part thereof and the several yearly rents of seventy-two pounds fifteen shillings one hundred and thirty-six pounds one hundred and sixty pounds and one hundred and seventeen pounds fifteen shillings reserved by the said indentures respectively shall as from the date when this agreement comes into force be reduced to seventy-one pounds one shilling and sixpence one hundred and thirty-six pounds one hundred and fifty-one pounds seventeen shilling and sixpence and one hundred and sixteen pounds three shillings payable at the times and in the manner mentioned in the said several indentures and the said covenants and conditions shall apply to in lieu of the site of the said new street the said pieces of land given up by the Council which abut on the lands included in the said several indentures.

And it is hereby agreed between all the parties hereto as follows:—

16. Save as hereinafter mentioned this agreement is made subject to confirmation by Parliament and shall come into force on the day on which the Act confirming the same receives the Royal Assent.

17. The Council shall use their best endeavours to secure the confirmation of this agreement by Parliament and shall promote a Bill for that purpose in the session of 1911 and the other parties hereto and each of them shall if required by the Council (but at the Council's expense) aid and assist the Council in procuring the passing of the said Bill so far as it relates to the confirmation of this agreement and in furtherance of that object shall at the like expense supply to the Council such information and particulars in his or their possession as the Council may reasonably require and shall support the said Bill so far as aforesaid by evidence or otherwise if need be (the Council defraying all costs and expenses in relation thereto) but nothing herein shall prejudice the rights of the said parties or any of them to oppose any other part of the said Bill.

18. This agreement is made subject to such alterations as Parliament shall think fit to make therein but if the Committee on the Bill make any material alterations in this agreement it shall be competent to any of the parties hereto to withdraw from the same. A.D. 1911.

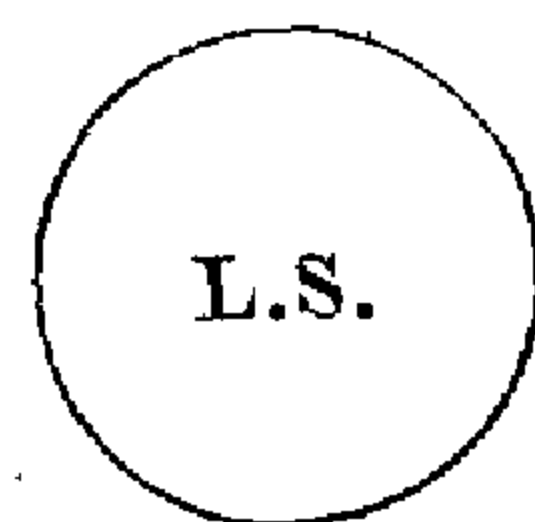
19. The costs of the several parties hereto of and incidental to this agreement shall be borne by the Council.

20. The expression "the landowner" where used in this agreement shall include besides the said Ralph Henry Carr-Ellison his successors in title and the expression "the trustees" shall include besides the said Peter William Purves and Herbert George Carr Carr-Ellison the trustees for the time being of the said indenture of settlement.

In witness whereof such of the said parties hereto as are not corporations or companies have hereunto set their respective hands and seals and such of the said parties hereto as are corporations or companies have caused their respective common seals to be hereunto affixed the day and year first before written.

Signed sealed and delivered
by the said Ralph Henry Carr-Ellison in the presence
of

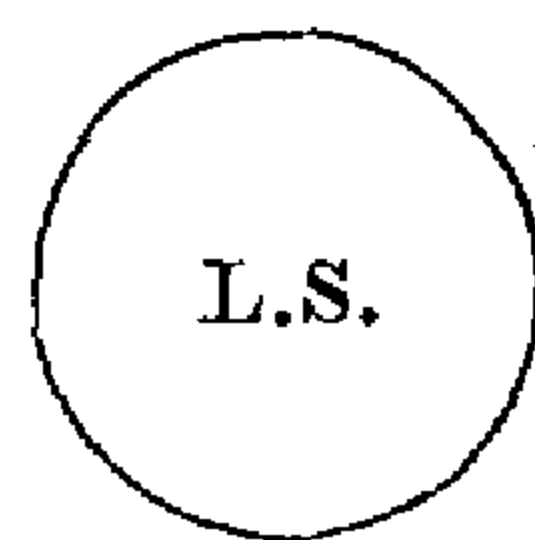
R. H. CARR-ELLISON
Lt.-Col.



LOUIS SIRC
Albion Hotel Broadstairs
Head waiter.

Signed sealed and delivered
by the said Peter William Purves in the presence
of

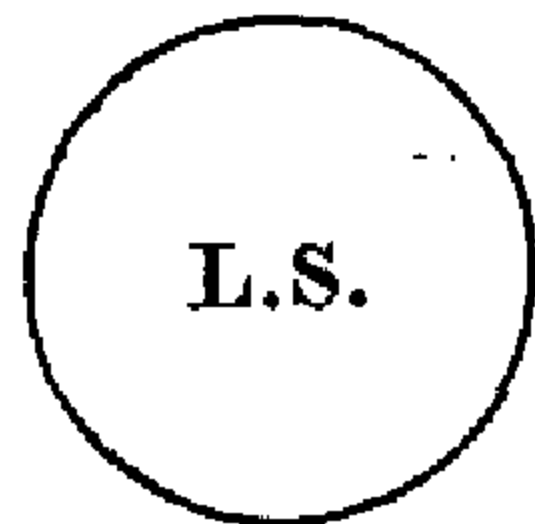
P. W. PURVES



ROBERT FLOWERS
19 King William Street London
Cashier.

Signed sealed and delivered
by the said Herbert George Carr Carr-Ellison in the
presence of

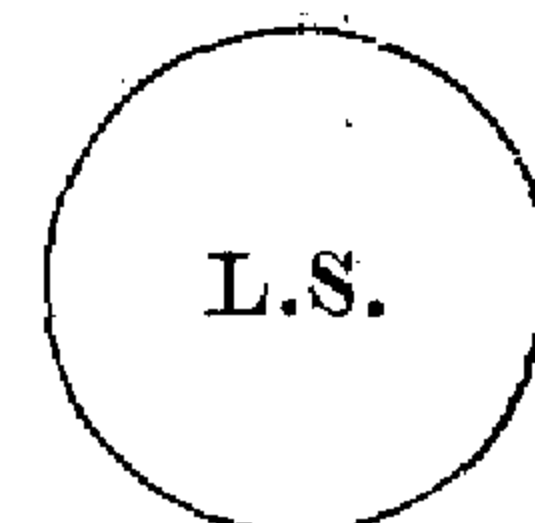
H. G. C. CARR-ELLISON



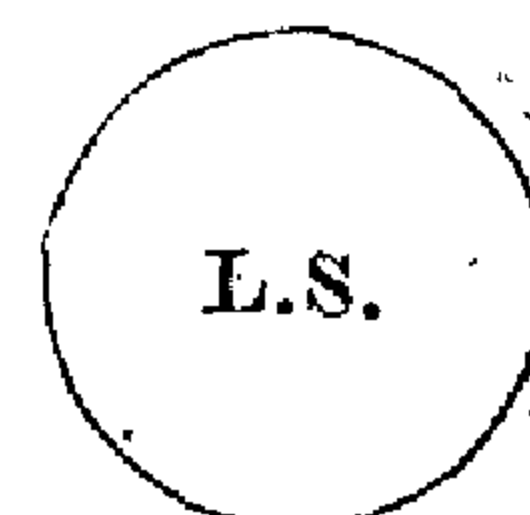
E. C. HENDERSON,
Clerk with Messrs. Leadbitter & Harvey
Solicitors
Newcastle-upon-Tyne.

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

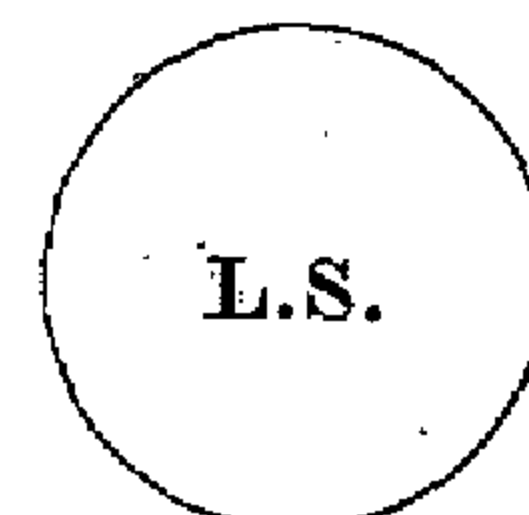
A.D. 1914. The common seal of the
 Wallsend and Hebburn
 Coal Company Limited
 was hereunto affixed in the
 presence of
 JOHN C. STRAKER }
 WM. GIBSON } Directors.
 W. E. SCOTT Secretary.



The common seal of the Bede
 Metal and Chemical Com-
 pany Limited was hereunto
 affixed by order of the
 Board in the presence of
 WM. D. CRUDDAS }
 ALF. M. PALMER } Directors of the Company.
 W. M. BROWN Secretary.



The common seal of the urban
 district council of Hebburn
 was hereunto affixed at a
 meeting of the Council
 held on the twelfth day of
 December 1910 in the
 presence of
 THOS. BECK Chairman.
 THOMAS STUART Clerk.



THE SECOND SCHEDULE.

PREMISES UPON WHICH IMPROVEMENT CHARGE MAY BE LEVIED.

Urban District.	Numbers on deposited Plans in respect of Improvement Charge.
Hebburn	12 13.

THE THIRD SCHEDULE.

A.D. 1911.

FORM OF MORTGAGE.

By virtue of the Hebburn Urban District Council Act 1911 and of other their powers in that behalf them enabling the Hebburn Urban District Council (hereinafter referred to as "the Council") in consideration of the sum of pounds paid to the treasurer of the Council by (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of pounds shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the said principal sum of pounds shall be repaid at the offices of the Council in the said district [(subject as hereinafter provided) on the day of one thousand nine hundred and] [by]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon and mentioned in an indorsement to be made hereon under the hand of the chairman and clerk of the Council for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal to be hereunto affixed this day of one thousand nine hundred and

The Endorsement within referred to.

The within-named consenting the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended to the day of one thousand nine hundred and [and the interest to be paid thereon on and from the

[Ch. xxii.] *Hebburn Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911. day of one thousand nine hundred and is hereby
— declared to be at the rate of per centum per annum].

Dated this day of one thousand nine hundred and

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] [of]
in consideration of the sum of pounds paid to me by
of (hereinafter referred to as "the transferee") do hereby
transfer to the transferee [his] executors administrators and assigns [the
within-written security] [the mortgage number of the revenues
of the Hebburn Urban District Council bearing date the day of]
and all my right and interest under the same subject to the several
conditions on which I hold the same at the time of the execution hereof
and I the transferee for myself my executors administrators and assigns
do hereby agree to take the said mortgage security subject to the same
conditions.

Dated this day of one thousand nine hundred and

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ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

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